IN THE DISTRICT COURT OF APPEAL
OF THE STATE OF FLORIDA
SIXTH DISTRICT

CASE NO.: 6D2026-2685

UNIVERSAL PROTECTION SERVICE, LLC
d/b/a ALLIED UNIVERSAL SECURITY SERVICES,

Defendant/Petitioner,

v.

LIBIA VARGAS DE DINAS,

Plaintiff/Respondent.

On Mandamus to the Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida (L.T. Case No. 2023-CA-008751-O)

PETITION FOR WRIT OF MANDAMUS

Petitioner Universal Protection Service, LLC d/b/a Allied Universal Security Services

WILSON, ELSER, MOSKOWITZ, EDELMAN & DICKER LLP
Attorneys for Petitioner Universal Protection Service, LLC
515 North Flagler Drive
Suite P-400
West Palm Beach, FL 33401
Telephone: 561-345-6810
Donna M. Krusbe, Florida Bar No. 975631,
donna.krusbe@wilsonelser.com
James M. Kloss, Florida Bar No. 503681,
James.Kloss@wilsonelser.com
Paula A. Romero, Florida Bar No. 123672,
Paula.Romero@wilsonelser.com

TABLE OF CONTENTS

INTRODUCTION 1

BASIS FOR INVOKING THE COURT'S JURISDICTION 1

STATEMENT OF THE CASE AND FACTS 2

A. The negligent security lawsuit 2

B. Trial court's pre-trial order 3

C. Allied's Motions for Summary Judgment 4

D. Case Management Conference 6

E. Allied's Motion for Reconsideration 7

NATURE OF THE RELIEF SOUGHT 8

ARGUMENT 9

I. MANDAMUS IS REQUIRED TO AFFORD ALLIED ITS RIGHT TO DUE PROCESS AND ACCESS TO COURT. .. 9

CONCLUSION 13

TABLE OF AUTHORITIES

Cases

Airam Stone Designs v. Rivas, 348 So. 3d 569 (Fla. 3d DCA 2020) 2

Aldana v. Holub, 381 So. 2d 231 (Fla. 1980) 11

Anderson v. Liberty Lobby, Inc., 477 U.S. 242 (1986) 12

Brown v. G4S Secure Sols. USA, Inc., No. 2023-CA-003459-0, 2024 Fla. Cir. LEXIS 1280 (Fla. (9th Cir.) Aug. 13, 2024) 4

Celotex Corp. v. Catrett, 477 U.S. 317 (1986) 12

Chiu v. Wells Fargo Bank, N.A., 242 So. 3d 461 (Fla. 3d DCA 2018) 9

Greene v. Seigle, 745 So. 2d 411 (Fla. 4th DCA 1999) 9

Huffman v. State, 813 So. 2d 10 (Fla. 2000) 9

In re Amends. to Fla. Rule of Civ. Pro., 309 So. 3d 192 (Fla. 2020) 12

In re Amends. to Fla. Rule of Civ. Pro. 1.510, 317 So. 3d 72 (Fla. 2021) 12

Kozich v. Hartford Ins. Co. of Mid-West, 609 So. 2d 147 (Fla. 4th DCA 1992) 9

Lakeshore Townhomes Condo. Ass'n, Inc. v. Bush, 664 So. 2d 1170 (Fla. 4th DCA 1995) 2

McElroy v. Oaks on the Bay, LLC, 288 So. 3d 1259 (Fla. 2d DCA 2020) 10

Orange County v. Stephanie Kennedy, No. 6D2024-0791 (Fla. 6th DCA Jun. 27, 2024) 10

Quintana v. Barad, 528 So. 2d 1300 (Fla. 3d DCA 1988) 10

Rich v. Narog, 366 So. 3d 1111 (Fla. 3d DCA 2022) 12

State Farm Fire and Cas. Co. v. Lezcano, 22 So. 3d 632 (Fla. 3d DCA 2009) 2

Statutes and Rules

§768.28, Fla. Stat. (2025) 4, 5

Florida Rule of Appellate Procedure 9.030(b)(3) 1

Florida Rule of Civil Procedure 1.510(c) 2, 8

INTRODUCTION

Petitioner, Universal Protection Service, LLC d/b/a Allied Universal Security Service ("Allied"), is the Defendant in this negligent security action brought by Respondent/Plaintiff, Libia Vargas De Dinas ("Vargas"). Allied filed a Motion for Partial Summary Judgment on its affirmative defense of limited sovereign immunity and a Motion for Final Summary Judgment as to duty two months before the court ordered deadline.

Allied attempted to obtain a hearing date for its motions, but, through no fault of Allied, was unable to do so before the deadline due to the transfer of the case to a new division and the successor trial judge's limited hearing availability. The successor judge, Honorable John Beamer, denied Allied's request to extend pre-trial deadlines to allow Allied's dispositive motions to be heard before trial.

This petition seeks a writ compelling Judge Beamer to conduct a hearing and rule on Allied's dispositive motions before the October 26 trial docket.

BASIS FOR INVOKING THE COURT'S JURISDICTION

Pursuant to Florida Rule of Appellate Procedure 9.030(b)(3), this Court has jurisdiction to issue a writ of mandamus directing the Honorable

John Beamer to hold a hearing and rule on Allied's motions for summary judgment. *See Airam Stone Designs v. Rivas*, 348 So. 3d 569 (Fla. 3d DCA 2020) (vacating summary judgment order and remanding for trial court to conduct a hearing on the motion as contemplated in Florida Rule of Civil Procedure 1.510(c)) (citing *State Farm Fire and Cas. Co. v. Lezcano*, 22 So. 3d 632, 634 (Fla. 3d DCA 2009) ("A trial court's failure to conduct a hearing prior to ruling on the motion for summary judgment constitutes a denial of the due process guarantee of notice and an opportunity to be heard.")); *see generally Lakeshore Townhomes Condo. Ass'n, Inc. v. Bush*, 664 So. 2d 1170, 1170 (Fla. 4th DCA 1995) ("Clearly the failure of a court to rule on a matter within the court's jurisdiction, which matter is properly before the court and ripe for disposition, is subject to mandamus.").

STATEMENT OF THE CASE AND FACTS

A. The negligent security lawsuit

Vargas was employed by the cleaning company that had a contract with Orange County ("the County") to clean the Orange County Courthouse ("the Courthouse"). (A-44). Allied had a contract with Orange County to provide security services at the Courthouse. (A-50).

On Friday, January 27, 2023, while cleaning, Vargas locked herself inside a holding cell located behind a courtroom on the 23rd floor of the Courthouse. (A-46). She remained undiscovered in the holding cell until Monday, January 30, 2023. (A-46).

Vargas filed a Complaint against Allied alleging Allied was negligent in failing to provide adequate security services at the Courthouse. (A-44). Allied denied that it was negligent or had a duty to Vargas and asserted the affirmative defense of sovereign immunity based on its contract with the County. (A-4). The case was assigned to Judge Patricia Strowbridge. When Judge Strowbridge retired, Judge John Beamer was assigned to the case.

B. Trial court's pre-trial order

On November 18, 2025, Judge Strowbridge entered an order setting trial for the two-week docket commencing October 26, 2026 and scheduling a pre-trial conference for September 22, 2026. (A-14). Pursuant to the trial order, motions for summary judgment were to be filed and heard at least 30 days before the pre-trial conference, or by August 21, 2026. (A-19). The order stated that "[f]ailure to serve the Motion with sufficient time to schedule the hearing before the Pre-Trial Conference will result in a denial

of the motion absent good cause shown." (A-19). All discovery was to be completed on the day before the pre-trial conference, by September 21, 2026. (A-19).

C. Allied's Motions for Summary Judgment

On June 24, 2026, 59 days before the August 21, 2026 deadline and well in advance of the 30 days required by the Trial Order, Allied filed a Motion for Partial Summary Judgment as to its sovereign immunity defense (A-27) and a Motion for Final Summary Judgment as to duty. (A-104). Allied demonstrated that its contract with the County to provide security services at the Courthouse vested the County with extensive control over Allied's day-to-day operations. (A-28, 29, 30). Accordingly, Allied argued that, as an agent of the County, Allied was entitled to sovereign immunity under section 768.28, Florida Statutes, which provides a limited waiver of the state's sovereign immunity for tort claims and which applies to state agents. (A-33). Allied cited several appellate decisions in which, under similar facts, courts found that the same degree of control was sufficient to establish an agency relationship resulting in 768.28(9)(a) immunity. (A-34, 35, 36). In addition, Allied relied on *Brown v. G4S Secure Sols. USA, Inc.*, No. 2023-CA-003459-0, 2024 Fla. Cir. LEXIS 1280 (Fla. (9th Cir.) Aug. 13,

2024), where the trial court reviewed the same security contract at issue in this case and concluded that the security company was an agent of the County and entitled to sovereign immunity and the limitation on liability set forth in section 768.28. (A-37).

In its Motion for Final Summary Judgment, Allied provided evidence establishing that its contractual duties were limited to providing security on the first floor of the Courthouse, controlling access at the loading dock, and patrolling the exterior perimeter of the Courthouse. (A-106). The record evidence established that Allied did not have a duty to patrol the upper floors of the Courthouse, including the area where Vargas was trapped. (A-109). In fact, Allied employees did not have a key to any courtrooms or the rooms located behind them and were not even aware there was a holding cell on the 23rd floor. (A-109). Allied argued that it had neither a contractual duty to Vargas nor a special relationship with her that created a duty to provide security measures to prevent her from being trapped in a holding cell. (A-113, 114, 115, 116). Allied also argued that it did not undertake any duty to provide security services to Vargas. (A-117).

D. Case Management Conference

When Allied attempted to schedule a hearing on its motions for summary judgment, they received the following notice:

> SPECIAL ATTENTION: Our Division is shutting down from June 18th thru June 30th in anticipation of Judge Patricia Strowbridge's retirement. Judge John Beamer will be taking over Division 33 on July 1st. There will be no short matters or any hearings scheduled between June 18th thru June 30th. In advisement of such, please schedule hearings beginning July 6th as dates become available. . . .

(A-657) (emphasis added). The only special set hearing date Allied was able to obtain was October 21, 2026, which was outside the deadline set by the Trial Order. (A-657).

As a result, Allied and co-defendant, Fidelity Security Agency, LLC, filed a Joint Motion for Case Management Conference (A-649) and a Joint Motion to Extend Case Management Order Deadline on July 21, 2026. (A-652). Counsel for Vargas provided August 13 as her only date of availability for a hearing on those motions.

At the August 13 hearing, counsel for Allied informed the court that after the motions for summary judgment were filed (59 days before the deadline), her assistant immediately checked the court's online calendar to find a hearing date. (A-675). The inability to have the motions heard was

due to the court's lack of hearing dates, and not anything that Allied failed to do. Allied and its co-defendant argued that the courts were putting the defendants in a "Catch 22" situation. (A-654, 677-679). If they filed dispositive motions before discovery was completed, plaintiffs would argue the motions were premature. If defendants waited until discovery was completed, they would be unable to get the motions heard by the deadlines to the prejudice of the defense. (A-654, 677-679).

Judge Beamer found there was no good cause to extend the deadline to allow the motions to be heard, stating:

> And, look, it's no surprise for anybody that's been practicing in Orange County, or pretty much anywhere that's got a large population, that our court system has very limited time and limited hearing time.

(A-676, 677). He denied the motion to extend the deadline based on the age of the case and the alleged prejudice to Vargas even though Vargas did not show how she would be prejudiced.

E. Allied's Motion for Reconsideration

Allied filed a Motion for Reconsideration of Judge Beamer's ruling. (A-656). Allied emphasized that it was not seeking an indefinite extension of the deadlines, only time for its motions to be heard. (A-658). There would

be no prejudice to Vargas, but rather, prejudice to Allied by denying Allied's due process right to a hearing and forcing Allied to proceed to trial before addressing Allied's dispositive legal defenses. (A-658). Allied argued that Rule of Civil Procedure 1.510(c) contemplates a hearing on motions for summary judgment and does not give trial court's discretion in that regard. (A-659). Judge Beamer denied the motion, but has not yet issued a written order.

NATURE OF THE RELIEF SOUGHT

Allied seeks a writ of mandamus to the Honorable John Beamer in the Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida, directing him to hold a hearing and rule on Allied's motions for summary judgment before the October 26 trial docket. The trial court's orders denying Allied's request to extend the deadline should be quashed and Allied should be afforded a full and fair opportunity to present argument in support of its dispositive motions and obtain a ruling before being forced to expend time and money going to trial to defend claims that Vargas will not be able to prove.

ARGUMENT

I. MANDAMUS IS REQUIRED TO AFFORD ALLIED ITS RIGHT TO DUE PROCESS AND ACCESS TO COURT.

"In order to be entitled to a writ of mandamus the petitioner must have a clear legal right to the requested relief, the respondent must have an indisputable legal duty to perform the requested action, and the petitioner must have no other adequate remedy available." *Huffman v. State*, 813 So. 2d 10, 11 (Fla. 2000). The law is clear that a party has a legal right to a hearing on a motion for summary judgment and the court has an indisputable legal duty to conduct a hearing and rule on the motion. *See Lezcano*, 22 So. 3d at 634 (citing *Kozich v. Hartford Ins. Co. of Mid-West*, 609 So. 2d 147, 148 (Fla. 4th DCA 1992) (Florida Rule of Civil Procedure 1.150(c) "does not provide the trial court with discretion to decide whether 'a hearing is required.'"). When the court refuses to conduct a hearing or rules on the motion without giving the movant an opportunity to be heard, the court denies the party due process. *Id.*; *accord Greene v. Seigle*, 745 So. 2d 411 (Fla. 4th DCA 1999) (reversing order granting summary judgment without a hearing and remanding for further proceedings.). Denial of due process constitutes fundamental error. *See Chiu v. Wells Fargo Bank, N.A.*, 242 So. 3d 461, 464 (Fla. 3d DCA 2018); *see also McElroy v.*

Oaks on the Bay, LLC, 288 So. 3d 1259 (Fla. 2d DCA 2020) (reversing final summary judgment entered without a hearing because it violated party's due process rights).

Judge Beamer's order denying Allied's request for a hearing on its motions for summary judgment denied Allied due process, has no lawful basis, and must be reversed. *See, e.g. Orange County v. Stephanie Kennedy*, No. 6D2024-0791 (Fla. 6th DCA Jun. 27, 2024) (granting petition for writ of mandamus and directing trial court to rule on pending motion for summary judgment) (citing *Quintana v. Barad*, 528 So. 2d 1300, 1301 (Fla. 3d DCA 1988) ("Where a trial court's refusal to rule has no lawful basis, mandamus is the appropriate remedy.")) (A-691). Allied did not waive its right to a hearing or take any action inconsistent with that right. Allied filed its motions well within the time required by the Trial Order (an additional 29 days beyond the 30 days required by the Trial Order) and did not delay in trying to set the motions for hearing. It was beyond Allied's control that Judge Strowbridge retired and there were no hearings in her division for a week and a half in June or that Judge Beamer did not have time on his calendar for a special set hearing before the Trial Order deadline. The Trial Order allows for deadlines to be extended upon a showing of good cause. (A-19). Allied sought a brief extension of the deadline, just long enough for

the trial court to hold a hearing, and demonstrated good cause why the matter could not have been set for hearing earlier. Under the circumstances, the trial court did not have discretion to refuse to hear Allied's motions. The unreasonably strict compliance with the pre-trial deadlines violated Allied's right to due process. *See generally Aldana v. Holub*, 381 So. 2d 231 (Fla. 1980) (holding that the Medical Mediation Act was unconstitutional because strict compliance with the ten-month deadline for commencing mediation arbitrarily deprived defendants of their rights when the failure to mediate by the deadline was not the fault of either party.).

Vargas claimed she would be prejudiced if the court were to conduct a hearing on Allied's motions so close to trial, but she did not explain how. To the contrary, it is Allied that will be prejudiced by being forced to go to trial when the evidence establishes, as a matter of law, that Allied did not have a duty to Vargas and she cannot carry her burden at trial. Of course Vargas would be "prejudiced" by the grant of summary judgment in favor of Allied, which would dispense with trial, but this is precisely the rationale behind Florida's adoption of the federal summary judgment standard and the Florida Supreme Court's directive that the trial court must make such determinations before forcing parties to trial on unsupported claims. *See,*

e.g. Rich v. Narog, 366 So. 3d 1111, 1118 (Fla. 3d DCA 2022) (under the new summary judgment standard, the trial court "must determine . . . whether the nonmovant's 'evidence presents a sufficient disagreement to require submission to a jury or whether it is so one-sided that one party must prevail as a matter of law.'") (citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 251-52 (1986)) (emphasis added); *see generally In re Amends. to Fla. Rule of Civ. Pro. 1.510*, 317 So. 3d 72, 76 (Fla. 2021) ("Amends. II") ("In Florida it will no longer be plausible to maintain that 'the existence of any competent evidence creating an issue of fact, however credible or incredible, substantial or trivial, stops the inquiry and precludes summary judgment, so long as the 'slightest doubt' is raised.'")). In adopting the federal standard, the Florida Supreme Court expressed its agreement "that summary judgment procedure is properly regarded not as a disfavored procedural shortcut, but rather as an integral part of our rules as a whole." *In re Amends. to Fla. Rule of Civ. Pro.*, 309 So. 3d 192, 194 (Fla. 2020) ("Amends. I") (quoting *Celotex Corp. v. Catrett*, 477 U.S. 317, 327 (1986)). "The Supreme Court's reasoning underlying the federal summary judgment standard is compelling: 'One of the principal purposes of the summary judgment rule is to isolate and dispose of factually unsupported claims or defenses.'" *Id.* (citing *id.*).

Allied is entitled to have a hearing on its motions for summary judgment. The trial court's denial of Allied's request for a hearing and findings of no good cause and purported prejudice to Vargas to the detriment of Allied's substantive rights were fundamental error. The constitutional rights of litigants should prevail over unworkable procedural rules especially when there is no demonstrable prejudice to the opposing party. Accordingly, a writ of mandamus is appropriate.

CONCLUSION

Allied respectfully requests that the Court issue a writ of mandamus directing the Honorable John Beamer to conduct a hearing and rule on Allied's pending dispositive motions for summary judgment before the October 26 trial docket to avoid the unnecessary expenditure of time, money and judicial resources.

WILSON, ELSER, MOSKOWITZ, EDELMAN & DICKER LLP

/s/ *Donna M. Krusbe*
Donna M. Krusbe

Florida Bar No.: 975631
donna.krusbe@wilsonelser.com
515 North Flagler Drive, Suite P-400
West Palm Beach, FL 33401
Telephone: 561-345-6810

CERTIFICATE OF SERVICE

WE HEREBY CERTIFY that on this 9th day of October, 2026, a true and correct copy of this Petition for Writ of Mandamus was filed with the Florida Court E-filng Portal which furnished a copy via electronic mail to:

Melissa Crowley, Esq. (mcrowley@anl-law.com; pleadings@anl-law.com; jvincenty@anl-law.com)
Attorney for Respondent.

WILSON, ELSER, MOSKOWITZ, EDELMAN & DICKER LLP

/s/ *Donna M. Krusbe*
Donna M. Krusbe

Florida Bar No.: 975631
donna.krusbe@wilsonelser.com
515 North Flagler Drive, Suite P-400
West Palm Beach, FL 33401
Telephone: 561-345-6810

CERTIFICATE OF COMPLIANCE

I certify that this petition complies with the font and word count requirements of Fla. R. App. P. 9.045(b) and Fla. R. App. P. 9.100(g). The certificate relies on the word count of the word-processing system used to prepare the petition, as Fla. R. App. P. 9.045(e) permits.

WILSON, ELSER, MOSKOWITZ, EDELMAN & DICKER LLP

/s/ *Donna M. Krusbe*
Donna M. Krusbe

Florida Bar No.: 975631
donna.krusbe@wilsonelser.com
515 North Flagler Drive, Suite P-400
West Palm Beach, FL 33401
Telephone: 561-345-6810